

nificance that the *Maryland v. Soper* cases and *Colorado v. Symes*, which the Court now regards as precedents for the ruling in *Ex parte United States*, were not even referred to in the opinion in the latter case.

If *Ex parte United States*, the *Maryland v. Soper* cases, and *Colorado v. Symes*, *supra*, are not to be supported on the basis of their peculiar circumstances which might have justified the Court in assuming jurisdiction, they should be candidly regarded as deviations from the narrow limits within which our appellate jurisdiction should move. They would then belong with the occasional lapses which occur when technical questions of jurisdiction are not properly presented to the Court and consciously met. That leaves two other cases, *Los Angeles Brush Corp. v. James*, 272 U. S. 701, and *McCullough v. Cosgrave*, 309 U. S. 634. In the *Los Angeles Brush* case, the Court explicitly refused to invoke authority to issue an ancillary writ inasmuch as the appellate jurisdiction of the controversy belonged to the Circuit Court of Appeals and not to this Court. The case concerned "the enforcement of the Equity Rules," 272 U. S. at 706, and the power which this Court recognized in that case was part of the duty imposed upon the Court by Congress to formulate and put in force the Equity Rules. The *McCullough* case was equally restricted. It merely followed the *Los Angeles Brush* case in enforcing the Equity Rules.

To be sure, *Ex parte United States*, *supra*, stated that later cases had qualified *In re Massachusetts* and *In re Glaser*, *supra*. But the cases that were avouched (*McClellan v. Carland*, 217 U. S. 268; *Ex parte Abdu*, 247 U. S. 27) in no wise called into question *In re Massachusetts* and *In re Glaser*, and the actual decisions left them intact. The authority of *In re Massachusetts*, *supra*, and *In re Glaser*, *supra*, was unquestioned as late as 1923, in *Magnum Co. v. Coty*, 262 U. S. 159, after, that is, the cases referred to in *Ex parte United States*, *supra*, as having